

SENATE No. 2429

The Commonwealth of Massachusetts

PRESENTED BY:

Patrick M. O'Connor

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act to ensure benefits through enhanced Selective Service registration.

PETITION OF:

NAME:

Patrick M. O'Connor

DISTRICT/ADDRESS:

First Plymouth and Norfolk

SENATE No. 2429

By Mr. O'Connor, a petition (accompanied by bill, Senate, No. 2429) of Patrick M. O'Connor for legislation to ensure benefits through enhanced Selective Service registration. Transportation.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE SENATE, NO. 2281 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act to ensure benefits through enhanced Selective Service registration.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Chapter 90 of the General Laws, as appearing in the 2010 Official Edition,
2 is hereby amended by inserting after section 8M the following section:-

3 Section 8N. (a) An applicant who applies for an operator's license, learner's permit,
4 identification card or a renewal of any such permit or license and who is at least 18 years of age
5 but less than 26 years of age authorizes the registrar to register the applicant with the Selective
6 Service System in compliance with section 3 of the Military Selective Service Act through the
7 applicant's signature on the application unless the applicant indicates otherwise as described in
8 subsection (b).

9 (b) The registrar shall give notice to any applicant who is at least 16 years of age but less
10 than 26 years of age that the applicant has a duty under federal law to register with the Selective

11 Service System at age 18. If the applicant has not registered within 30 days after reaching 18
12 years of age, they shall be informed that they still has an affirmative obligation under federal law
13 to register with the Selective Service System before reaching 26 years of age. The registrar shall
14 also notify the applicant that their signature on an application for any such license, permit,
15 identification card or renewal shall constitute consent to authorize the registrar to forward the
16 applicant's information to the Selective Service System, registering the applicant with the
17 Selective Service System unless the applicant declines to give such consent by signing a
18 statement so stating on the application.

19 (c) If the applicant is at least 16 years of age but less than 18 years of age the registrar
20 shall notify the applicant that their signature on an application for any such license, permit,
21 identification card or renewal shall constitute consent authorizing the applicant to be registered
22 upon attaining 18 years of age as required by federal law, unless the applicant indicates
23 otherwise as described in subsection (b).

24 (d) The registrar shall notify the applicant that a refusal to grant such consent shall not be
25 grounds for denial of driving privileges nor shall it be a basis for the registrar to discriminate
26 against the applicant, and that the opportunity to give such consent to the registrar is provided
27 only for the convenience of the applicant. This notice shall be made both verbally and through a
28 written document available in English, Spanish and such other languages as the registrar
29 determines. If the applicant grants that authority, the registrar shall forward to the Selective
30 Service System, in an electronic format, no sooner than the applicant's eighteenth birthday, only
31 the information necessary for registration of the applicant.

(e) Failure to grant such authority as provided in this section shall not be a basis for the registrar or any other related government agency to discriminate against the applicant, including but not limited to the denial of driving privileges.

(f) The registrar shall not distribute or make available to any person or governmental agency in any way any list of those applicants who declined to grant the registrar authority to forward their information to the Selective Service System. The registrar shall not compile, develop or maintain any such list unless it is necessary for the administration and operation of the registry, and such list shall not be given to any other governmental or non-governmental agency. The registrar shall not distribute or make available to any person or governmental agency any list of those applicants who did grant the registrar authority to forward their information to the Selective Service System except as otherwise authorized by this section.

SECTION 2. Implementation of this act shall be contingent on the receipt by the registrar of motor vehicles of sufficient federal funds to pay a reasonable portion of the initial start-up costs for computer programming changes necessary to implement the requirements of this section related to the reporting of information to the Selective Service Administration. The registrar shall initiate and monitor efforts to obtain federal funds for the purposes stated in this act and shall report promptly to the joint committee on public safety and the house and senate committees on ways and means when federal funds have been received by the department.